

RESOLUTION OF RIGHTS PROCEDURE

After carrying out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: On April 28, 2023, a complaint was received by this Agency filed by Mr. A.A.A. (hereinafter, the complainant) against AMERICAN EXPRESS EUROPE S.A., against EXPERIAN BUREAU DE CRÉDITO, S.A.U., against SOLUCIONES DIGITALES CRX, S.L., and against TOYOTA KREDITBANK GMBH BRANCH IN SPAIN for not having duly addressed his right to erasure.

This Agency initiated the processing of the corresponding files against each of the mentioned entities, with the present procedure being against SOLUCIONES DIGITALES CRX, S.L. (hereinafter, the respondent).

The complainant exercised the right to erasure against Experian, indicating that his data had been included, without his consent and without prior notification, in the files of said entity by various entities, including the respondent.

Experian responded that they could not proceed with the cancellation of the data as it had been confirmed by the reporting entity to the Badexcug file.

SECOND: In accordance with Article 65.4 of the LOPDGDD, the complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The respondent stated that "(...) there is no complaint, letter, or request for information addressed to our entity.

The request is directed to another entity, so we understand that this entity should be the one to respond to your request for information.

As of today, we have not received any request from the person detailed in the request regarding compliance with data protection regulations."

THIRD: The result of the transfer process indicated in the previous Fact did not allow for the understanding that the complainant's claims were satisfied. Consequently, on July 28, 2023, for the purposes provided for in Article 64.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection agreed to admit the complaint for processing.

The aforementioned agreement granted the respondent a hearing period, so that within ten working days they could present any allegations they deemed appropriate, but no allegations were made within the established period.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Issues

In accordance with the provisions of Article 55 of the GDPR, the Spanish Agency for Data Protection is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and promoting awareness among data controllers and processors regarding their

obligations, as well as addressing complaints filed by a data subject and investigating, as appropriate, the reasons for such complaints.

Correspondingly, Article 31 of the GDPR establishes the obligation of data controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In cases where they have appointed a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with said authority.

In accordance with this regulation, following the procedure provided for in Article 65.4 of the LOPDGDD, prior to the admission of the complaint regarding the exercise of the rights regulated in Articles 15 to 22 of the GDPR, which gives rise to the present procedure, the complaint was forwarded to the respondent for analysis, to respond to this Agency within one month, and to demonstrate that they had provided the complainant with the appropriate response.

The result of this transfer did not allow for the understanding that the complainant's claims were satisfied. Consequently, on July 28, 2023, for the purposes provided for in Articles 64.1 and 65 of the LOPDGDD, the complaint was admitted for processing.

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submitted. This admission to processing determines the opening of the present procedure for the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, according to which:

“When the procedure refers exclusively to the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, it shall be initiated by an admission agreement, which shall be adopted in accordance with the provisions of Article 65 of this organic law.

In this case, the deadline for resolving the procedure shall be six months from the date on which the agreement of admission to processing was notified to the complainant. Once this period has elapsed, the interested party may consider their complaint accepted.”

Article 58.2 of the GDPR grants the Spanish Data Protection Agency a series of corrective powers for the purpose of rectifying any infringement of the GDPR, among which is included “ordering the data controller or processor to attend to the requests for the exercise of the rights of the data subject under this Regulation.”

III

Rights of individuals regarding personal data protection

The rights of individuals regarding personal data protection are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. The rights of access, rectification, deletion, objection, the right to restriction of processing, and the right to data portability are contemplated.

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, consideration is given to what is expressed in Recitals 59 and following of the GDPR.

In accordance with the provisions of these regulations, the data controller must establish formulas and mechanisms to facilitate the exercise of rights by the interested party, which shall be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless it can demonstrate that it is unable to identify the interested party, and to express its reasons in case it does not intend to attend to such request. The burden of proof of compliance with the duty to respond to the request for the exercise of rights made by the affected party lies with the data controller.

The communication addressed to the interested party regarding their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language.

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Right to deletion

Article 17 of the GDPR, which regulates the right to deletion of personal data, establishes the following:

"1. The data subject shall have the right to obtain from the data controller the deletion of personal data concerning them without undue delay, and the data controller shall be obliged to delete personal data without undue delay when one of the following circumstances applies:

- a) the personal data are no longer necessary in relation to the purposes for which they were collected or otherwise processed;
- b) the data subject withdraws consent on which the processing is based according to Article 6(1)(a) or Article 9(2)(a), and this is not based on another legal ground;
- c) the data subject objects to the processing under Article 21(1), and there are no overriding legitimate grounds for the processing, or the data subject objects to the processing under Article 21(2);
- d) the personal data have been unlawfully processed;
- e) the personal data must be deleted for compliance with a legal obligation under Union or Member State law applicable to the data controller;
- f) the personal data have been collected in relation to the offer of information society services referred to in Article 8(1).

2. When the data controller has made the personal data public and is obliged, under the provisions of paragraph 1, to delete such data, the data controller, taking into account the available technology and the cost of implementation, shall take reasonable steps, including technical measures, to inform controllers that are processing the personal data of the data subject's request for deletion of any link to those personal data, or any copy or replication of the same.

3. Paragraphs 1 and 2 shall not apply when the processing is necessary:

- a) for exercising the right to freedom of expression and information;
- b) for compliance with a legal obligation which requires processing by Union or Member State law applicable to the data controller, or for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;
- c) for reasons of public interest in the area of public health in accordance with Article 9(2)(h) and (i), and paragraph 3;
- d) for archiving purposes in the public interest, scientific or historical research purposes or statistical purposes, in accordance with Article 89(1), insofar as the right referred to in paragraph 1 is likely to make impossible or seriously impede the achievement of the objectives of that processing, or
- e) for the establishment, exercise or defense of legal claims."

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Co-responsibility

Article 20 of the LOPDGDD, concerning credit information systems, in its section 2 establishes that the entities maintaining the system and the creditors, regarding the processing of data related to their debtors, will have the status of co-responsible for the processing of the data, applying the provisions established by Article 26 of Regulation (EU) 2016/679. It is the responsibility of the creditor entity to ensure that the requirements for inclusion in the debt system are met, being liable for their non-existence or inaccuracy.

Article 26 of the GDPR, Co-responsible for processing, states that

"1. When two or more controllers jointly determine the purposes and means of processing, they shall be considered co-controllers of the processing. The co-controllers shall determine in a transparent

manner and by mutual agreement their respective responsibilities in complying with the obligations imposed by this Regulation, in particular regarding the exercise of the rights of the data subject and their respective obligations to provide information referred to in Articles 13 and 14, unless, and to the extent that, their respective responsibilities are governed by Union or Member State law applicable to them. Such an agreement may designate a contact point for data subjects.

2. The agreement referred to in paragraph 1 shall duly reflect the respective roles and relationships of the co-controllers in relation to the data subjects. The essential aspects of the agreement shall be made available to the data subject.

3. Regardless of the terms of the agreement referred to in paragraph 1, data subjects may exercise the rights conferred on them by this Regulation against, and before, each of the controllers.”

On the other hand, Guidelines 1/2022, in their version of March 28, 2023, from the European Data Protection Board, indicate that “When two or more controllers process data jointly, the provision of the co-controllers regarding their respective responsibilities in relation to the exercise of the rights of the data subject, especially regarding the response to access requests, shall not affect the rights of the data subjects against the controller to whom they direct their request.”

VI

Conclusion

In the present case, from the examination of the documentation provided, it has been established that the claimant, on March 10, 2023, requested the deletion of their data from Experian, and that this entity, on April 25, 2023, responded denying such deletion as it had been confirmed by the responding party.

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However, there is no documentary evidence that allows considering that the claimant has approached the responding party requesting the deletion of their data.

Data protection regulations state that “When two or more controllers jointly determine the purposes and means of processing, they shall be considered co-controllers of the processing” and that “(...) data subjects may exercise the rights conferred on them by this Regulation against, and before, each of the controllers.” However, this regulation does not establish the obligation that when rights are exercised only against one of the controllers, all must respond.

Therefore, since in this case, the claimant did not exercise their right against the responding party, the claim should be dismissed.

In view of the cited provisions and others of general application, the Director of the Spanish Data Protection Agency RESOLVES:

FIRST: TO DISMISS the claim made by Mr. A.A.A. against SOLUCIONES DIGITALES CRX S.L. with NIF B86429362.

SECOND: TO NOTIFY this resolution to Mr. A.A.A. and to SOLUCIONES DIGITALES CRX S.L.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Data Protection Agency within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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